



# U.S. Securities and Exchange Commission

## Justification for other than full and open competition



### **1. Identification of the agency and the contracting activity, and specific identification of the document as a “Justification for other than full and open competition.”**

U.S. Securities and Exchange Commission  
100 F Street, NE  
Washington, DC 20549

### **2. Nature and description of the action being approved:**

The U.S. Securities and Exchange Commission (SEC) intends to award a sole source requirement to Green Street Advisors LLC for subscription to global news and statistics on asset-backed and mortgage-backed securitization activities.

### **3. A description of the supplies or services required to meet the agency’s needs (including the estimated value).**

The SEC requires subscription to global news and statistics on asset-backed and mortgage-backed securitization activities and on commercial mortgage-backed securities and REIT debt markets and real estate finance business. The SEC requires information on the initial terms of all rated asset-backed issues, mortgage-issues and collateralized bond obligations placed anywhere in the world, and quarterly rankings of key participants in asset-backed securitization, including underwriters, issuers, trustees, law firms, bond insurers and rating agencies. Additionally, the SEC requires the pricing, key terms and participants of all commercial mortgage-backed securities (CMBS) issued in the world, and quarterly rankings of key participants in the CMBS market including underwriters, issuers, loan contributors, trustees, law firms, and rating agencies.

The SEC intends to award a contract for 1 Base Year and 4 Option Years. The total estimated value is [REDACTED].

### **4. An Identification of the statutory authority for other than full and open competition:**

RFO Part 12.102 in accordance with 41 U.S.C. 1901, only one responsible source and no other supplies or services will satisfy agency requirements.

### **5. A demonstration that the proposed contractor’s unique qualifications or the nature of the acquisition requires use of the authority cited:**

Green Street Advisors LLC has been the only source identified that provides the content required to fully meet the SEC’s requirements. Green Street’s Asset-Backed Securities (ABS) and Commercial Mortgage-Backed Securities (CMBS) databases and newsletters provide

difficult to obtain news and statistics on the asset and mortgage-backed securities markets and the regulatory and legal developments that affect these markets. This news is gathered and analyzed by the publisher's editors and authors in the specialty practice areas of asset-backed issues, mortgage-backed issues and collateralized debt obligations placed anywhere in the world. The publications are under copyright and not available from any other source.

**6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by [Subpart 5.2](#) and, if not, which exception under [5.202](#) applies.**

The SEC Office of Acquisitions (OA) will post a Synopsis on SAM.gov in accordance with FAR 5.201 that provides notification of the SEC's intent to award a procurement to Green Street Advisors LLC for this requirement.

**7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.**

The Contracting Officer has determined that the anticipated price will be fair and reasonable based on review of market research price estimates, and review of prior contract pricing.

**8. A description of the market research conducted (see [part 10](#)) and the results or a statement of the reason market research was not conducted.**

The SEC conducted market research through market surveys and found that Green Street Advisors, LLC is the only source that fully meets the requirements. Other sources were reviewed but do not provide comprehensive data required by the SEC. [REDACTED]

[REDACTED] Therefore, Green Street Advisors, LLC is the only source identified that fully meets the requirements.

**9. Any other facts supporting the use of other than full and open competition:**

None.

**10. A listing of the sources, if any that expressed, in writing an interest in the acquisition:**

There have been no other sources that have expressed interest in this acquisition. If another source expresses interest in this acquisition, the company's information will be maintained in the contract file.

**11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:**

The SEC will perform market research for future acquisitions for the purpose of verifying the sole source nature of this requirement.

**12. Required Signatures:**

